



JAMAICA CONSTABULARY FORCE

Administrative Review Policy and Standard Operating Procedures

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1.0 Introduction

The use of force, lethal or otherwise is not uncommon among members primarily due to the extent of crime and violence within the Jamaican environment. Notwithstanding, the Jamaica Constabulary Force (JCF) is obligated to ensure that members' actions are lawful and fully consistent with the JCF's policies, procedures, rules, regulations and stipulated training, and that where required, the degree of force used is justified and necessary to execute their functions as humanely as possible.

Lethal force on the Use of Force Continuum includes the discharge of a firearm which may or may not result in bodily injury or death. When death is occasioned by the use of force, or, where a member discharges a firearm whether on or off duty, an administrative and criminal investigation will immediately commence. The scope of the investigation is likely to be wide-ranging. It will not only include the circumstances of any injury to, or death of any person, but also the circumstances leading up to the incident and all the surrounding issues such as the persons involved directly or indirectly.

It should be noted that incidents involving the use of firearm(s) may affect members differently; it is therefore not possible to accurately determine who may be affected and the extent. Studies and experience have shown that law enforcement personnel, who have not discharged their weapons or suffered injury in both fatal and non-fatal encounters, may also be traumatized.

The JCF Human Rights and Police Use of Force and Firearms Policy stipulates that an Administrative Review (AR) must be conducted in every case where a member uses lethal force; that is, in every case where the member discharges a firearm whether death, injury or no injury resulted therefrom. Administrative Reviews are separate and distinct enquiries from the criminal investigations. Although criminal investigations often require some time to reach a conclusion, ARs should normally be of short duration, reaching preliminary findings within seven (7) days of the incident.

2.0 Purpose

This document outlines the JCF's Policy and Standard Operating Procedures on the management of the AR process. It includes *inter alia* a determination of the extent to which: i) training was adequate; ii) supervision was adequate iii) policies and procedures were adhered to; and iv) policies, regulations and standard operating procedures were clear and effective to cover the situation.

3.0 Scope

This policy and SOP shall apply to all sworn members of the JCF and its auxiliary and covers the conduct of the AR surrounding the use of firearm. It does not cover criminal investigations.

4.0 Policy Statement

It is the policy of the JCF that an Administrative Review shall be conducted in all incidents involving the use of firearms. The purpose of this review is to enquire into the administrative aspects of the circumstances in order to determine if, and to what extent the involved member(s) action(s) were in conformity with laws, regulations and force policies. Recommendations of the AR will inform administrative outcome(s).

5.0 Abbreviation

AR	Administrative Review
CISD	Critical Incident Stress Debriefing

6.0 Definition

For the purpose of this policy and SOP, the following definitions will apply:

- 6.1 **Administrative Review**
An administrative process carried out by the organization to determine whether a member's action(s) was justified or in compliance with force policies, procedures, rules, and training.
- 6.2 **Administrative Review Panel**
An appointed body with authority to conduct administrative reviews whenever members are involved in incidents where a firearm is used.
- 6.3 **Involved Member**
A member who was involved in an incident in which a firearm was used (shooter and non-shooter).
- 6.4 **Lethal Force**
Lethal force is defined as any action of a member which when applied results or is likely to result in serious bodily injury or death. On the Use of Force Continuum, it is considered to be the discharge of a firearm which may or may not result in bodily injury or death.
- 6.5 **Use**
For the purpose of this policy and SOP, a firearm is deemed to have been used in circumstances where it has been discharged whether intentionally, accidentally or otherwise.

7.0 Responsibilities

The following summarizes key responsibilities:

- 7.1 **The Deputy Commissioner of Police i/c Strategic Operations** has overall responsibility to manage the review of incidents involving the use of a firearm and reserves the right in all cases to determine the return of the member(s) to operational duties or any other administrative action where necessary.
- 7.2 **The Assistant Commissioner of Police** in charge of Area has the responsibility to:
 - 7.2.1 appoint a panel to conduct Administrative Reviews where incidents involving the use of a firearm occurred within their command; and
 - 7.2.2 submit report of the findings of the AR to the Deputy Commissioner of Police in-charge Strategic Operations Portfolio.
- 7.3 **Administrative Review Panel**
 - 7.3.1 An Administrative Review Panel shall be appointed by the Area Officer where the incident took place to conduct reviews in incidents where a firearm is used. The objective of the panel is to determine whether or not:
 - i. the shooting was reasonable, lawful and can be justified or not;

- ii. the action of the officer(s) was in accordance with Force Policies and/or training was adequate;
- iii. the appropriate authority, providing recommendation for remedial and/or disciplinary action;
- iv. any training, equipment, or policy modifications are necessary;
- v. policy failure or training failure contributed to the outcome of the incident;
- vi. supervision, command control or the absence thereof contributed to the outcome of the incident;
- vii. the physical and emotional state of the member(s) involved is such that they are capable of resuming normal police duties; and
- viii. recommendation(s) should be made for an annual review and assessment by the Commissioner of Police.
- ix. management, supervision and direction had been applied appropriately.
- x. force policies, regulations and standard operating procedures are clear and effective to cover the situation;
- xi. force policies, regulations and standard operating procedures were adhered to;
- xii. human rights and police use of force training are current and adequate.

7.3.2 The Administrative Review Panel shall be comprised of **four (4)** members as follows:

- i. **Chairman** - selected by the Area Officer in collaboration with the Inspectorate of Professional Standards Oversight Bureau (IPROB);
- ii. **Representative from IPROB** - an officer or senior sub-officer of the Internal Investigations Unit, IPROB;
- iii. **A Gazetted Officer** - from the division where the incident occurred and not involved in the incident; and
- iv. **Firearm Expert** - from the Department of Weapons and Tactical Training (DWTT).

7.4 **Divisional Commanders** for the division where the incident took place shall:

- 7.4.1 immediately cause the member(s) involved to be relieved from operational duties and assign administrative duties pending the outcome of the AR.
- 7.4.2 forward the initial report containing the facts of the incident along with the completed JCF *Administrative Review Data Capture Form (Appendix 1)* to the respective Area Officer.
- 7.4.3 coordinate staff activities/responses that are required to complete the AR process.

7.5 **Chaplaincy Services Branch** shall be responsible for conducting Critical Incident Stress Debriefing (CISD) of involved officer(s) and forward the result to the Area Officer concerned.

7.6 **Managers/Supervisors are responsible** to keep proper records of information and/or declaration made to them by members on the occurrence of any incident in which firearm was used, and which should form part of their official report, as well as presentation for the AR. Managers and supervisors will be held accountable for:

- 7.6.1 failing to report any use of firearm whether such use was intentional, resulted in injury, damage or otherwise;

- 7.6.2 allowing members to be issued with firearms that they are not qualified or authorized to use;
- 7.6.3 failing to exercise proper supervision in use and care of firearm;
- 7.6.4 failing to ensure that members are properly armed with less lethal options, where such is available;
- 7.6.5 generating and maintaining a list of qualification/certification for members under their command who are eligible to use service firearms and a copy kept at the guardroom/reception area to guide the process of arming personnel for duty; and
- 7.6.6 ensuring the continuous updating of the Firearm Register.

7.7 **Involved Members (actual shooter or not)**

Members who are involved in incident(s) where a firearm has been used shall:

- 7.7.1 be made to declare to their team leaders whether or not they had discharged their firearms during the incident and the number of live/expended ammunitions in their possession at the time of the declaration;
- 7.7.2 be held accountable for failing to report injury, self-inflicted or otherwise, as a result of shooting incidents;
- 7.7.3 be held accountable for not being armed with less lethal options, where such is available;
- 7.7.4 present their firearm booklets to the Administrative Review panel for inspection; and
- 7.7.5 not proceed on leave, except in emergency cases and guarantee must be given that the member will attend the Administrative Review on the appointed day.

8.0 **Standard Operating Procedures**

The following outlines the procedure for the management of Administrative Review after the use of a firearm:

8.1 **Whenever a firearm is used**

The following shall apply whenever a firearm is used:

- 8.1.1 The involved members whether on or off duty, shall immediately be relieved from operational duties and assigned administrative duties pending the outcome of the AR.
- 8.1.2 Where members discharged their firearms, this shall be reported to the supervisor. The report should include the number of live/expended ammunitions in their possession.
- 8.1.3 Where it is suspected that involved member(s) may have been under the influence of drugs or alcohol at the time of the incident, they shall undergo a drug/breath testing.
- 8.1.4 Where any injury(s) or otherwise was caused as a result of the incident this must be communicated immediately to their supervisor.
- 8.1.5 An initial report containing the facts of the incident along with the Completed *Jamaica Constabulary Force Administrative Review Data Capture Form* must be forwarded by the Divisional Commander to the Area Officer concerned within **twenty-four (24) hours** of the occurrence of the incident.
- 8.1.6 After an incident where firearm(s) has been used, members shall undergo a Critical Incident Stress Debriefing (CISD), conducted by the Chaplaincy Services Branch within **forty-eight (48) hours** of the incident. The result of the CISD shall be submitted to the Area Officer in the division where the incident occurred no later than **twenty-four (24) hours** after the CISD.

8.2 **Administrative Review Panel**

- 8.2.1 An Administrative Review Panel shall be appointed to conduct reviews in incidents no later than **four (4) days** after the incident where a firearm was used.
- 8.2.2 After the completion of the AR a written report along with the completed *JCF Administrative Review (Appendix 2)* form must be submitted within twenty-four **(24) hours** by the Chairman of the AR Panel to the Area Officer.

8.3 **Attendance of members at Administrative Review**

Members involved in incidents where a firearm has been used must attend AR, whether or not they were the actual shooter, (i.e. all members of the team).

- 8.3.1 No leave must be granted to involved member(s) before attending the AR, unless it is a case of emergency. Where leave is considered a guarantee must be given by the member that he/she will attend the AR on the appointed day.
- 8.3.2 Members attending AR must be detailed accordingly. Uniform members must attend properly dressed in uniform unless excused otherwise;
- 8.3.3 Firearm booklets of involved members must be presented to the Administrative Review panel for inspection.
- 8.3.4 The Assistant Commissioner of Police in charge of the Area where the incident/shooting occurred shall forward the findings of the AR to the Deputy Commissioner of Police in-charge Strategic Operations Portfolio within **seven (7) days** of the incident.

8.4 **Members return to frontline duty**

- 8.4.1 Member(s) shall only return to operational duties on the authorization of the Deputy Commissioner of Police, Strategic Operations Portfolio **seven (7) days** after the incident providing they are physically and mentally able to do so.

9.0 **Legislative Authority/Guiding Principles**

This policy and SOP on the conduct and management of Administrative Review shall be read in conjunction with the following:

- 9.1 Police Service Regulations 1961
- 9.2 JCF Human Rights and Police Use of Force and Firearms Policy

10.0 **Relevant Documents**

- 10.1 Firearm Register

11.0 **Relevant Forms**

- 11.1 Administrative Review Form (Appendix 1)
- 11.2 Jamaica Constabulary Force Administrative Review Data Capture Form (Appendix 2)



Jamaica Constabulary
Administrative Review: Data Capture Form
(To be completed by Divisional Officer)

1. **Division Incident Occurred:** _____
2. **Date Incident Occurred** _____
3. **Summary of the Incident (brief):** _____

4. **Person(s) Involved:** _____

5. **Person who lead the team:** _____
 Reg. No. _____ Rank _____ Name _____
6. **Members of Police Party involved:**
 - (i) Reg. No. _____ Rank _____ Name _____ Firearm# _____
 No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (ii) Reg. No. _____ Rank _____ Name _____ Firearm# _____
 No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (iii) Reg. No. _____ Rank _____ Name _____ Firearm# _____
 No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (iv) Reg. No. _____ Rank _____ Name _____ Firearm# _____
 No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (v) Reg. No. _____ Rank _____ Name _____ Firearm# _____
 No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (vi) Reg. No. _____ Rank _____ Name _____ Firearm# _____
 No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
7. **Member(s) who fired/used force:**
 - (i) Reg. No. _____ Rank _____ Name _____
 Service/Personal Firearm# _____ No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (ii) Reg. No. _____ Rank _____ Name _____
 Service/Personal Firearm# _____ No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (iii) Reg. No. _____ Rank _____ Name _____
 Service/Personal Firearm# _____ No. of Rounds expended _____
 Qualification Status _____ Certification Status _____
 - (iv) Reg. No. _____ Rank _____ Name _____
 Service/Personal Firearm# _____ No. of Rounds expended _____

Review Questions

1. Was/were the member/s properly issued with the firearm(s)? ☐ Yes ☐ No
 If no explain _____
2. How was member issued with the firearm? _____
3. Was/were the member/s appropriately armed for the duty? ☐ Yes ☐ No
 If no, explain _____
4. What are the circumstances under which member/s fired? _____

5. Was the victim the target of the police fire? ☐ Yes ☐ No

Explain _____

Supervision

1. Was there adequate supervision? ☐ Yes ☐ No

Explain _____

2. Was/were member(s) involved briefed after the incident? ☐ Yes ☐ No

If Yes, by whom? _____

3. Was the incident reported (where appropriate) on a timely basis to:

- | | | |
|---|--|-------------------------|
| a. Patrol Supervisor | ☐ Yes ☐ No | Give date and time..... |
| b. Area/Branch/Divisional Commander | ☐ Yes ☐ No | Give date and time..... |
| c. Police Emergency Communication Centre (PECC) | ☐ Yes ☐ No | Give date and time..... |
| d. INDECOM | ☐ Yes ☐ No | Give date and time..... |
| e. Internal Investigations Unit (IIU) | ☐ Yes ☐ No | Give date and time..... |
| f. Force Chaplain | ☐ Yes ☐ No | Give date and time..... |

Management Decisions

1. Was/were the member(s) involved removed from frontline duty immediately after the incident? ☐ Yes ☐ No If no explain

(If yes, state the medium used and provides evidence Example; Diary Entry, Written notice.)

2. Was/were the member(s) subjected to counseling within the prescribed time after the incident? ☐ Yes ☐ No

If no explain _____

3. Was/were the weapon(s) used by the police taken out of service and properly handled for testing? ☐ Yes ☐ No

If no explain _____

4. Was/were the hand(s) of the member(s) swabbed? ☐ Yes ☐ No

If no explain _____

5. Was/were the hand(s) of the victim(s) swabbed? ☐ Yes ☐ No

If no explain _____

Commanding Officer's Name: _____

Commanding Officer's Signature: _____

Date: _____

☐ Fatal Shooting	☐ Injury Shooting	☐ Discharge of Firearm	☐ Use of Less Lethal Force
---	--	---	---

☐ Dwelling House	☐ Public thoroughfare	☐ Business Place	☐ In a Motor Vehicle	☐ Terrain	☐ Other (specify)
---	--	---	---	----------------------------------	--

[illegible]

Date of Review: _____ dd. _____ month _____ yr.	Time of Review _____ ☐ AM _____ ☐ PM
Place Review Held _____	

Panellists:

Chairman: _____

IPROB Rep: _____

Gazetted Officer: _____

(Formation where Incident took place)

DWTT Rep: _____

5. Review Considerations

A. Person Involved in Incident:

Person who led the team: Reg. No. _____ Rank _____ Name _____

Member(s) who fired/used force:

(i) Reg. # _____ Rank _____ Name _____ Age _____ Service _____ # Rds Expended _____

Type of Firearm _____ Qualified to Use Firearm () Yes () No. Certification Status _____

(ii) Reg. # _____ Rank _____ Name _____ Age _____ Service _____ # Rds Expended _____

Type of Firearm _____ Qualified to Use Firearm () Yes () No. Certification Status _____

(iii) Reg. # _____ Rank _____ Name _____ Age _____ Service _____ # Rds Expended _____

Type of Firearm _____ Qualified to Use Firearm () Yes () No. Certification Status _____

(iv) Reg. # _____ Rank _____ Name _____ Age _____ Service _____ # Rds Expended _____

Type of Firearm _____ Qualified to Use Firearm () Yes () No. Certification Status _____

(v) Type/Nature of Duty Member(s) was/were engaged in: () Special Patrol () Routine patrol () VCP () Covert Activity () Off duty and responded to citizens distress () Off duty and responded to attack on self/family member(s)

(vi) Was duty logged at Station () Yes () No.

Explain _____

(If more space is needed please continue on a separate sheet of paper)

A. Person Involved in Incident (cont'd):

(vii) Was/Were the member(s) properly issued with the firearm(s)? ☐ Yes ☐ No

If No explain _____

(viii) Was/Were the member(s) appropriately armed for the duty? ☐ Yes ☐ No

If No explain _____

(ix) Circumstances under which member(s) fired: _____

(x) Was less lethal Option(s) Available? () Yes () No If yes, was/were it/they applied () Yes () No

Explain

B. Particulars of the Incident

- (1) Was warning given before the member(s) fired? ☐ Yes ☐ No

Explain _____

- (2) Was/were the victim(s) at any time under the control of the police before he/she became a casualty? ☐ Yes ☐ No

Explain _____

- (3) Based on the circumstances of the incident, was the member trained to deal with this type of incident? ☐ Yes ☐ No

Explain _____

- (4) Does the JCF train members to deal with this type of incident? ☐ Yes ☐ No

- (5) Was the police response to the incident (a) Spontaneous ☐ (b) Planned? ☐

- (i) Was the police activity consistent with guidelines in the Police Use of Force Response? ☐ Yes ☐ No

Explain _____

- (6) Was the Response Team briefed? ☐ Yes ☐ No

Explain _____

- (7) Were there defined roles? ☐ Yes ☐ No

- (8) Was there assignment of roles? ☐ Yes ☐ No

- (9) Was any property damaged as a result of the incident? ☐ Yes ☐ No

C. Supervision

- (1) Was there adequate supervision? ☐ Yes ☐ No

Explain _____

- (2) Was the supervisor in control of the activities? ☐ Yes ☐ No

Explain _____

- (3) Were the appropriate actions taken to deal with casualties? ☐ Yes ☐ No

Explain _____

- (4) Were adequate actions taken to protect the scene prior to the arrival of Scene of Crime Officers? ☐ Yes ☐ No

If No explain _____

- (5) Was the incident reported immediately after the occurrence? ☐ Yes ☐ No

If No explain _____

D. Result of Critical Incident Stress Debriefing

Name of Person who conducts CISD _____ Date of CISD _____

State of member(s)

1. **Member 1** Reg. No. _____ Rank _____ Name _____
(a) Physical _____
(b) Emotional _____
2. **Member 2** Reg. No. _____ Rank _____ Name _____
(a) Physical _____
(b) Emotional _____
3. **Member 3** Reg. No. _____ Rank _____ Name _____
(a) Physical _____
(b) Emotional _____

Other Observations

Recommendations

(If more space is needed please continue on a separate sheet of paper)

E. Administrative Management

1. Was/Were the member(s) involved removed from frontline duty immediately after the incident? ☐ Yes ☐ No
If no explain _____
2. Was/Were the member(s) counselled within the prescribed time after the incident? ☐ Yes ☐ No
If no explain _____
3. Was/were the weapon(s) used by the police immediately taken out of service and properly handled for testing? ☐ Yes ☐ No
If no, explain _____
4. Was/Were the hands of the member(s) swabbed? ☐ Yes ☐ No
If no, explain _____
5. Was/Were the hands of the victim(s) swabbed? ☐ Yes ☐ No
If no, explain _____
6. Was Police Control informed after the incident occurred? ☐ Yes ☐ No
If no, explain _____
7. Was the member(s) subjected to drug/alcohol testing? ☐ Yes ☐ No
If no, explain _____

F. Administrative Review Findings

G. Recommendations of Administrative Review Panel

H. This section must be completed by the relevant members of the Reviewing Panel

Signatures:

Date:

Chairman: _____

IPROB Rep: _____

Gazetted Officer: _____

(Formation where Incident took place)

DWTT Rep: _____
